

TENTATIVE RULING

CASE: **Jennings v. Nugget Markets, Inc.**
 Case No. CV2023-1878

Hearing Date: **April 7, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Nugget Markets, Inc.'s motion for leave to file a cross-complaint is **GRANTED**. (Code Civ. Proc., §§ 428.10, subd. (a), 428.50, subd. (c).) The causes of action alleged in the proposed cross-complaint are permissive, rather than compulsory, because they did not exist at the time that defendant served its answer. (Code Civ. Proc., §§ 426.50, 426.30, subd. (a), 426.10, subd. (c); *Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864; Ortiz decl., ¶ 30, Exhibit K.) The Court finds that permitting defendant to file the cross-complaint will serve the interests of justice. (Code Civ. Proc., § 428.50, subd. (c); Ortiz decl., ¶¶ 7-19, Exhibits A-G.)

Defendant is **DIRECTED** to file their cross-complaint within ten days of hearing, by no later than **April 17, 2026**. (Ortiz decl., ¶ 30, Exhibit K.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Whitehead v. FCA US, LLC, et al.**
Case No. CV2025-0245

Hearing Date: **April 7, 2026** **Department Eleven** **9:00 a.m.**

The Court reminds defendant FCA US, LLC, of the memorandum page length limitations. (Cal. Rules of Court, rule 3.1113(d) [stating that “no opening or responding memorandum may exceed 15 pages”].)/“[n]o reply or closing memorandum may exceed 10 pages.”].) In the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

The Court notes that defendant failed to properly meet and confer “in person or by telephone, or by video conference” prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Kita Decl., ¶¶ 4 – 8, Exhibits. B, C.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

The Court declines to consider new arguments or facts raised by defendant in its reply brief. New arguments may not be raised for the first time in a reply brief. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited].)

The Court rules on defendant’s motion for judgment on the pleadings, as follows:

- Defendant’s motion as to the first and second causes of actions [brought pursuant to Civil Code section 1793.2] on the ground that these causes of action fail to state sufficient facts to constitute a cause of action pursuant to the Song-Beverly Consumer Warranty Act is **DENIED**. (Code Civ. Proc., § 438.) The Court finds that the allegations of the complaint support that the vehicle at issue was accompanied by a manufacturer’s new car warranty at the time of purchase. (Civ. Code, §§ 1795.5, subd. (d), 1793.22; see *Bank of New York Mellon v. Citibank, N.A.* (2017) 8 Cal.App.5th 935, 952 [all reasonable inferences are drawn in favor of the plaintiff]; Compl., ¶¶ 7, 8, Exhibit A.)
- Defendant’s motion as to the first and second causes of actions [brought pursuant to Civil Code section 1793.2] on the ground that these causes of action are time-barred by the statute of limitations found in Code of Civil Procedure section 871.21 is **DENIED**. (Code Civ. Proc., § 438; see *Bell v. Bank of California* (1908) 153 Cal. 234, 245.) The Court finds that defendant fails to provide any legal authority that the new statute of limitations in section 871.21 applies retroactively. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Furthermore, regardless of the applicable statute of limitations, given that the complaint fails to allege “the date of original delivery” of the